

Smt. Saroj v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 9 December 2013 · Writ - C No. 67098 of 2013 · **Writ disposed; petitioner relegated to Clause 6.5 complaint.**

HEADNOTE

A consumer's writ against an electricity bill dated 24.10.2013 was disposed of because Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a complaint to the Executive Engineer. The Court directed the petitioner to avail that remedy, to be decided accordingly, and did not examine the bill on merits.

FACTUAL SUMMARY

Smt. Saroj petitioned the Allahabad High Court against an electricity bill dated 24 October 2013 issued by respondent no. 3. Counsel for respondents 2 and 3 submitted that a complaint against the bill lay under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer. The Standing Counsel appeared for the State. After hearing the parties, the Division Bench disposed of the writ on that alternative-remedy footing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where a consumer challenges an electricity bill by writ and a complaint against that bill is available under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, the writ is disposed of with liberty to file that complaint, which is to be decided accordingly. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer's writ against an electricity bill dated 24.10.2013 was disposed of because Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a complaint to the Executive Engineer. The Court directed the petitioner to avail that remedy, to be decided accordingly, and did not examine the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 24.10.2013

Left to be decided on a Clause 6.5 complaint before the Executive Engineer. ¶ 1